

FORMAL WRITTEN PROTEST: MATERIAL DEFAULT & STATUTORY VIOLATIONS IN FY 2026/27
LMAD REPORT

(Pursuant to California Streets and Highways Code § 22620 et seq.)

TO: Office of the City Clerk, City of Yorba Linda
Active Voting Quorum, Yorba Linda City Council

DATE: June 11, 2026

I, Peter Meng, P.E., as the deeded, fee-simple property owner of the parcel containing the Chicago Avenue interior slope (adjacent to 17412 Chicago Ave, Yorba Linda, CA 92886), hereby file this FORMAL WRITTEN PROTEST against the certification of the FY 2026/2027 LMAD Engineer's Report and the levying of the corresponding assessments.

As the City's administrative record demonstrates, this assessment district is in material default of state fire codes, local development plans, and federal utility right-of-way standards. You are hereby notified of the following unmitigated violations:

1. DESTRUCTION OF DEFENSIBLE SPACE & CODE VIOLATIONS: The LMAD continues to irrigate, maintain, and protect a high-density, hazardous "forest" on my private property. This condition directly violates the Vista Del Verde (VDV) Development Plan (VP-1-21) conditions prohibiting hazardous biological fuel loads. It further violates Orange County Fire Authority (OCFA) Guideline B-09 by blocking emergency rescue setbacks and canopy clearances adjacent to pre-1980 non-fire-resistant homes with combustible shingle roofs.
2. CAPPED PIPELINE IGNITION HAZARD: This dense biological fuel load sits directly over capped, high-pressure hazardous liquid crude and Class II toxic produced-water/brine transmission lines (formerly operated by Aera Energy). In a wildfire event, the thermal-ignition risk to these sealed, pressurized pipelines represents an un-insurable hazard of catastrophic geomorphological slope failure and toxic soil sterilization.
3. CONSTITUTIONAL GIFT OF PUBLIC FUNDS (Art. XVI, § 6): The City's legal counsel has confirmed that this hazard is preserved as a "forest" solely to accommodate the subjective "privacy" desires of a non-owner resident across the street (the Nelsons). Expending public LMAD tax dollars to maintain a dangerous public nuisance on my private property to provide an aesthetic benefit to a third-party individual is a flagrant, unconstitutional Gift of Public Funds.
4. LICENSURE AND ETHICAL DEFAULT: City Engineer Jamie Lai, P.E., has certified this LMAD budget while failing to respond to my January 12, 2026 Technical Interrogatories. She has refused to certify the safety of this slope under her own P.E. seal.

This written protest, combined with my September 15, 2025 P.E. Safety Report, establishes the City's "Actual Knowledge" of a dangerous condition under Government Code § 835, thereby piercing all municipal discretionary immunities.

Respectfully submitted,


Peter Meng, P.E. (License #63423)
Deeded Property Owner

RECEIVED
CITY OF YORBA LINDA
CITY CLERK'S DEPT

JUN 11 2026

BY _____